

25STCV31343 25STCV31343

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-09-16

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The Court is granting Defendant's motion to stay the proceedings pending the disposition of the appeal in Variety Media, LLC v. Superior Court, No. B350578. The Court agrees with Defendant that the disposition of the appeal in the Variety Media case likely will directly affect the core legal issues in Plaintiff's action against the Defendant here in this case. The Court of Appeal heard oral argument in Variety Media on August 25, 2026. The Court of Appeal's decision must be issued within 90 days of that date. Under the circumstances, a stay of proceedings in this case is warranted. In the Court's view, the stay will promote efficiency and conserve the resources of the parties and the Court. The Court is thus declining at this time to hear the Defendant's demurrer to the Plaintiff's First Amended Complaint, which is on calendar on September 16, 2026. The Court is continuing the hearing on the demurrer to March 2, 2027 at 8:30. Defendant shall file and serve 21 days prior to the continued hearing date a supplemental brief in support of the demurrer setting forth the Defendant's position on the implications of the Court of Appeal's decision in the Valley Media case. Plaintiff shall file and serve 7 days prior to the continued hearing date a supplemental brief in opposition to the demurrer setting forth Plaintiff's position on the implications of the Court of Appeal's decision in the Valley Media case. Defendant shall not file a reply to the Plaintiff's supplemental brief.

Defendant's stay motion was additionally based on a separate pending appeal in Lucky Opco, LLC v. Superior Court, No. B352848. The Court's decision to grant Defendant's motion is not based on the Lucky Opco case. That is because oral argument in the Court of Appeal in that case has yet to be set.